

		before the 11/9/23 Deed of Trust that Plaintiff submits. (EM Fact No.37.) Plaintiff's 11/9/23 Deed of Trust is thus a junior lien. Defendant EM later purchased the Picturesque Property at the foreclosure sale, and obtained title thereto, pursuant to the Grant Deed recorded on April 10, 2025 (the "2025 Grant Deed"). (EM Fact No. 43). By operation of law, Plaintiff's Junior Lien was thus extinguished upon the foreclosure by the Senior Deed of Trust at the foreclosure sale, which took place on December 11, 2024. (EM Fact No. 44; see <i>Decon Grp., Inc. v. Prudential Mortg. Cap. Co., LLC</i> (2014) 227 Cal.App.4th 665, 670–71.) Accordingly, the motion for summary adjudication as to Defendant EM Investment with respect to the 4th cause of action concerning the property located at 11685 Picturesque Drive, Studio City, CA 91604 is denied, as Plaintiff fails to establish an enforceable lien/security interest on the subject property. Plaintiff shall give notice.
54	<i>Guzman vs. Cisneros</i>	Before the Court is Defendants Leobardo Vasquez Cisneros and United Plant Growers Inc.'s unopposed Motion for Summary Judgment of Anastacio Benjamin Tovasquez, Nicholas Ignacio Llano, and Damien Ismael Apurathal's Complaint for negligence/motor vehicle, as well as a Request for Judicial Notice. The unopposed Request for Judicial Notice is GRANTED.

Motion for Summary Judgment

“[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (Ibid.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at p. 851.)

A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) The motion may not be granted or denied on issues not raised by the pleadings. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258; Nieto v. Blue Shield of Calif. Life & Health Ins. Co. (2010) 181 Cal.App.4th 60, 74.)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a